

Pramod Kumar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 November 2019 · Writ - C No. 37889 of 2019 · **Writ disposed; petitioner to appear before the Executive Engineer with objections; speaking final order directed; coercive action stayed; further challenge left to Section 127.**

HEADNOTE

On a writ challenging electricity recovery for want of hearing and alleged non-compliance with the U.P. Electricity Supply Code, 2005, the High Court did not quash the recovery notice or decide the dues. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks or until the objection was decided (with automatic revival on default), and left any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Pramod Kumar petitioned the Allahabad High Court against U.P. Power Corporation Ltd. and two others, seeking certiorari to quash an order dated 16 September 2019 and a recovery notice dated 20 November 2018 for electricity dues, and mandamus restraining coercive recovery. He alleged coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. After a listing on 25 November 2019, another Division Bench heard and disposed of the writ on 28 November 2019.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to speaking order then Section 127 appeal

HOLDING

The Court declined to decide the validity of the recovery notice or Supply Code compliance on a writ. It directed the petitioner to appear on 12.12.2019 before the Executive Engineer with objections and evidence; the Engineer was to pass a speaking final order within four weeks; coercive action was stayed for seven weeks or until disposal of the objection, with automatic vacation of the stay and revival of the recovery citation on default; and if aggrieved by the final order the petitioner could appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

On a writ challenging electricity recovery for want of hearing and alleged non-compliance with the U.P. Electricity Supply Code, 2005, the High Court did not quash the recovery notice or decide the dues.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 16.09.2019 ORDER AND 20.11.2018 RECOVERY NOTICE

Neither instrument was quashed; merits of the electricity dues were not examined. ¶ 1

NOT DECIDED — WHETHER THE LICENSEE FOLLOWED THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR AFFORDED A HEARING

Those objections were left to the Executive Engineer on a speaking final order, with Section 127 thereafter. ¶ 1

